

Schedule 2

[s. 54]

Provisions of Buildings Ordinance 1935 to Continue in Operation

Rights of Building and Adjoining Owners

110. Definitions *adjoining owner* and *building owner*; provisions for buildings adjoining unbuilt-on land

(1) In this section and in sections 111 to 126—

adjoining owner (毗鄰擁有人) means an owner, and ***adjoining occupier*** (毗鄰佔用人) means an occupier, of land, buildings, storeys or rooms adjoining those of a building owner;

building owner (建築物擁有人) means such one of the owners of adjoining land who is desirous of building, or such one of the owners of buildings, storeys or rooms, separated from one another by a party wall or party structure who does or is desirous of doing a work affecting that party wall or party structure.

(2) Where lands held under lease from the Government by different owners adjoin and are unbuilt-on at the line of junction, and either owner is about to build on any part of the line junction, the following provisions shall have effect.
(*Amended 29 of 1998 s. 105*)

(3) If the building owner desires to build a party wall on the line of junction, he shall serve notice thereof on the adjoining owner describing the intended wall.

(4) If the adjoining owner consents to the building of a party wall, the wall shall be built half on the land of each of the 2

owners, or in such other position as may be agreed between them.

- (5) The expenses of the building of the party wall shall from time to time be defrayed by the 2 owners in due proportion, regard being had to the use made and which may be made of the wall by them respectively.
- (6) If the adjoining owner does not consent to the building of a party wall, the building owner shall not build the wall otherwise than as an external wall placed wholly on his own land.
- (7) If the building owner does not desire to build a party wall on the line of junction but desires to build an external wall placed wholly on his own land, he shall serve notice thereof on the adjoining owner describing the intended wall.
- (8) Where in any of the cases aforesaid the building owner proceeds to build an external wall on his own land, he shall have a right at his own expense, at any time after the expiration of 1 month from the service of the notice, to place on the land of adjoining owner below the level of the lowest floor, the projecting footings of the external wall with concrete or other solid substructure thereunder, making compensation to the adjoining owner or occupier for any damage occasioned thereby. The amount of such compensation, if any difference arises, shall be determined in the manner in which differences between building owners and adjoining owners are hereinafter directed to be determined.
- (9) Where an external wall is built against another external wall or against a party wall, it shall be lawful for the Building Authority to allow the footing of the side next such other external or party wall to be omitted.

111. Rights of building owner in relation to party structures, etc.; existing prior building

The building owner shall have the following rights in relation to party structures and adjoining structures—

- (a) to make good, underpin, or repair any party structure which is defective or out of repair;
- (b) to pull down and rebuild any party structure which is so far defective or out of repair as to make it necessary or desirable to pull it down;
- (c) to pull down any timber or other partition which divides any buildings, and is not conformable to the provisions of this Ordinance, and to build instead thereof a party wall conformable thereto;
- (d) in the case of buildings having rooms or storeys the property of different owners intermixed, to pull down such of the said rooms or storeys, or any part thereof as are not built in conformity with this Ordinance, and to rebuild the same in conformity therewith;
- (e) in the case of buildings connected by arches or communications over streets belonging to other persons, to pull down such of the said buildings, arches or communications or such parts thereof as are not built in conformity with this Ordinance, and to rebuild the same in conformity therewith;
- (f) to raise and underpin any party structure permitted by this Ordinance to be raised or underpinned or any external wall built against such party structure, upon condition of making good all damage occasioned thereby to the adjoining premises or to the internal finishings and decorations thereof, and of carrying up to the requisite height all flues and chimney stacks belonging to the adjoining owner on or against such party structure or external wall;

- (g) to pull down any party structure which is of insufficient strength for any building intended to be built, and to rebuild the same of sufficient strength for the above purposes, upon condition of making good all damage occasioned thereby to the adjoining premises or to the internal finishings and decorations thereof;
- (h) to cut into any party structure upon condition of making good all damage occasioned to the adjoining premises by such operation;
- (i) to cut away any footing or any chimney-breast, jamb or flue projecting, or other projection from any party wall or external wall in order to erect an external wall against such party wall, or for any other purpose, upon condition of making good all damage occasioned to the adjoining premises by such operation;
- (j) to cut away or take down such parts of any wall or building of an adjoining owner as may be necessary in consequence of such wall or building overhanging the ground of the building owner, in order to erect an upright wall against the same, on condition of making good any damage sustained by the wall or building by such operation;
- (k) to raise a party fence wall, or to pull the same down and rebuild it as a party wall;
- (l) to perform any other necessary works incident to the connexion of a party structure with the premises adjoining thereto:

Provided that these rights shall be subject to this qualification, that any building which has been erected prior to 21 February 1903 shall be deemed to be conformable to the provisions hereof if it be conformable to the provisions of the Ordinances regulating buildings before that date.

112. Requirements of adjoining owner in relation to party structures; differences between building owner and adjoining owner

- (1) Where a building owner proposes to exercise any of the foregoing rights with respect to party structures, the adjoining owner may by notice require the building owner to build on any such party structure such chimney copings, jambs, or breasts, or flues, or such piers or recesses, or any other like works as may fairly be required for the convenience of such adjoining owner, and may be specified in the notice; and it shall be the duty of the building owner to comply with such requisition in all cases where the execution of the required works will not be injurious to the building owner, or cause to him unnecessary inconvenience or unnecessary delay in the exercise of his right.
- (2) Any difference that arises between a building owner and an adjoining owner in respect of the execution of any such works shall be determined in the manner in which differences between building owners and adjoining owners are hereinafter directed to be determined.

113. Notice to be given by building owner before work commences

- (1) A building owner shall not, except with the consent in writing of the adjoining owner, and of the adjoining occupiers, or in cases where any wall or party structure is dangerous (in which cases the appropriate provisions of this Ordinance shall apply), exercise any of his rights under this Ordinance in respect of any party fence wall unless at least 1 month, or exercise any of his rights under this Ordinance in relation to any party wall or party structure other than a party fence wall, unless at least 2 months before doing so he has served on the adjoining owner of the party fence wall, the party wall or

party structure, as the case may be, notice stating the nature and particulars of the proposed work and the time at which the work is proposed to be commenced.

- (2) When a building owner in the exercise of any of his rights under this Ordinance lays open any part of the adjoining land or building, he shall at his own expense make and maintain for a proper time a proper hoarding and shoring or temporary construction for protection of the adjoining land or building and the security of the adjoining occupier.
- (3) A building owner shall not exercise any right given to him by this Ordinance in such manner or at such time as to cause unnecessary inconvenience to the adjoining owner or to the adjoining occupier.
- (4) A party wall or structure notice shall not be available for the exercise of any right, unless the work to which the notice relates is begun within 6 months after the service thereof, and is prosecuted with due diligence.
- (5) Within 1 month after receipt of such notice the adjoining owner may serve on the building owner a notice requiring him to build on any such party structure any works to the construction of which he is hereinbefore declared to be entitled.
- (6) The last-mentioned notice shall specify the works required by the adjoining owner for his convenience, and shall, if necessary, be accompanied by explanatory plans and drawings.
- (7) If either owner does not, within 14 days after the service on him of any notice, express his consent thereto, he shall be considered as having dissented therefrom, and thereupon a difference shall be deemed to have arisen between the building owner and the adjoining owner

114. Differences between building owner and adjoining owner

- (1) In all cases not specially provided for by this Ordinance, where a difference arises between a building owner and an adjoining owner in respect of any matter arising with reference to any work to which any notice given under this Ordinance relates, unless both parties concur in the appointment of 1 architect they shall each appoint an architect, and the 2 architects so appointed shall select a third architect, and such 1 architect, or 3 architects, or any 2 of them, shall settle any matter from time to time during the continuance of any work to which the notice relates in dispute between such building owner and adjoining owner, with power by his or their award to determine the right to do, and the time and manner of doing any work, and generally any other matter arising out of or incidental to such difference; but any time so appointed for doing any work shall not, unless otherwise agreed, commence until after the expiration of the period by this Ordinance prescribed for the notice in the particular case. (*Amended L.N. 159 of 1990*)
- (2) Any award given by such 1 architect, or by such 3 architects, or by any 2 of them, shall be conclusive, and shall not be questioned in any court; with this exception, that either of the parties to the difference may within 14 days from the date of the delivery of the award, appeal therefrom to a judge in chambers, who may, subject as hereafter in this section mentioned, rescind the award or modify it in such manner as he thinks just.
- (3) If either party to the difference makes default in appointing an architect for 10 days after notice has been served on him by the other party to make such appointment, the party giving the notice may make the appointment in the place of the party so making default.

- (4) The costs incurred in making or obtaining the award shall be paid by such party as the architect or architects determine.
- (5) If the appellant on appearing before the judge declares his unwillingness to have the matter decided by him, and proves to his satisfaction that in the event of the matter being decided against him he will be liable to pay a sum, exclusive of costs, exceeding \$500, and gives security, to be approved by the judge, duly to prosecute an action in the Court of First Instance and to abide the event thereof, all proceedings in Chambers shall thereupon be stayed, and the appellant may bring an action in the Court of First Instance against the other party to the difference. (*Amended 62 of 2000 s. 3*)
- (6) The plaintiff in such action shall deliver to the defendants an issue whereby the matters in difference between them may be tried, and the form of such issue in case of dispute or of the non-appearance of the defendant shall be settled by the court, and the action shall be prosecuted and the issue tried in all respects as if it were an ordinary action or issue in the Court of First Instance, or as near thereto as circumstances admit. (*Amended 62 of 2000 s. 3*)
- (7) If the parties agree as to the facts a special case may be stated for the opinion of the court, and such case shall be heard and decided in all respects as if it were an ordinary case stated for the opinion of the court, or as near thereto as circumstances admit; and any costs that may have been incurred before the judge in chambers shall be deemed to be costs incurred in the action and be payable accordingly.
- (8) Where both parties have concurred in the appointment of 1 architect, then, if he refuses, or for 7 days neglects to act, or if he dies or becomes incapable of acting before he has made his award, the matters in dispute shall be determined in the same manner as if he had not been appointed.

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- (9) Where each party has appointed an architect and a third architect has been selected, then, if he refuses, or for 7 days neglects to act, or before such difference is settled, dies, or becomes incapable of acting, the 2 architects shall forthwith select another architect in his place who shall have the same powers and authorities as were vested in his predecessor.
- (10) Where each party has appointed an architect, then, if the 2 architects refuse, or, for 7 days after request of either party, neglect to select a third architect, or another third architect as aforesaid the Chief Executive may, on the application of either party, appoint the Director of Buildings or some other fit person to act as third architect who shall have the same powers and authorities as if he had been selected by the 2 architects appointed by the parties. (*Amended L.N. 76 of 1982; L.N. 94 of 1986; L.N. 291 of 1993; 62 of 2000 s. 3*)
- (11) Where each party has appointed an architect, then, if before the difference is settled either architect dies, or becomes incapable of acting, the party by whom he was appointed may appoint some other architect to act in his place, and if for the space of 7 days after notice served on him by the other party for that purpose, he fails to do so, the other architect may proceed ex parte, and his decision shall be as effectual as if he had been a single architect in whose appointment both parties had concurred; an architect so substituted as aforesaid shall have the same powers and authorities as were vested in the former architect at the time of his death or disability.
- (12) Where each party has appointed an architect, then, if either of the architects refuses, or for 7 days neglects to act the other may proceed ex parte, and his decision shall be as effectual as if he had been a single architect in whose appointment both parties had concurred.
- (13) In this section, ***architect*** (建築師) means ***authorized architect***.

115. Right of entry of building owner

A building owner, his servants, agents and workmen, at all usual times of working, may enter and remain on any premises for the purpose of executing, and may execute any work which he has become entitled or is required in pursuance of this Ordinance to execute, removing any furniture or doing any other thing which may be necessary; and if the premises are closed, he and they may, accompanied by a police officer, break open any fences or doors in order to effect such entry:

Provided that before entering on any premises for the purpose of this section the building owner shall give 14 days' notice of his intention so to do to the owner and occupier. In case of emergency he shall give such notice only as may be reasonably practicable.

116. Underpinning or strengthening of foundations of adjoining building

Where a building owner intends to erect within 3 metres of a building belonging to an adjoining owner a building any part of which within such 3 metres extends to a lower level than the foundations of the building belonging to the adjoining owner, he may, and, if required by the adjoining owner, shall (subject as hereinafter provided) underpin or otherwise strengthen the foundations of the said building so far as may be necessary, and the following provisions shall have effect— (*Amended L.N. 294 of 1976*)

- (a) at least 2 months' notice in writing shall be given by the building owner to the adjoining owner stating his intention to build, and whether he proposes to underpin or otherwise strengthen the foundations of the said building, and such notice shall be accompanied by a plan and sections, showing the site of the proposed building, and the depth to which he proposes to excavate;

- (b) if the adjoining owner shall, within 14 days after being served with such notice, give a counternotice in writing that he disputes the necessity of such underpinning or strengthening, or that he requires such underpinning or strengthening, then, if such counternotice is not acquiesced in, a difference shall be deemed to have arisen between the building owner and the adjoining owner;
- (c) the building owner shall be liable to compensate the adjoining owner and occupier for any inconvenience, loss or damage which may result to them by reason of the exercise of the powers conferred by this section;
- (d) nothing in this section contained shall relieve the building owner from any liability to which he would otherwise be subject in case of injury caused by his building operations to the adjoining owner.

117. Adjoining owner may require security to be given for payment of expenses and counter requisition by building owner

- (1) An adjoining owner may, if he thinks fit, by notice in writing, require the building owner (before commencing any work which he may be authorized by this Ordinance to execute) to give such security as may be agreed upon, or in case of difference as may be settled by a judge in chambers, for the payment of all such expenses, costs and compensation in respect of the work as may be payable by the building owner.
- (2) The building owner may, at any time after service on him of a party wall or party structure requisition by the adjoining owner, and before beginning a work to which the requisition relates, but not afterwards, serve a counter requisition on the adjoining owner, requiring him to give such security for payment of the expenses, costs, and compensation for which

he is or will be liable, as may be agreed upon, or, in case of difference, as may be settled as aforesaid.

- (3) If the adjoining owner does not within 1 month after service of the counter requisition give security accordingly, he shall at the end of that month be deemed to have ceased to be entitled to compliance with his party wall or party structure requisition, and the building owner may proceed as if no party wall or party structure requisition had been served on him by the adjoining owner.

118. Expenses to be borne jointly by building owner and adjoining owner

- (1) As to expenses to be borne jointly by the building owner and adjoining owner the following provisions shall apply.
- (2) If any party structure is defective or out of repair, the expenses of making good, underpinning, or repairing the same shall be borne by the building owner and adjoining owner in due proportion, regard being had to the use that each owner makes or may make of the structure.
- (3) If any party structure is pulled down and rebuilt by reason of its being so far defective or out of repair as to make it necessary or desirable to pull it down, the expense of such pulling down and rebuilding shall be borne by the building owner and adjoining owner in due proportion, regard being had to the use that each owner may make of the structure.
- (4) If any timber or other partition dividing a building is pulled down in exercise of the right by this Ordinance vested in a building owner, and a party structure is built instead thereof, the expense of building such party structure and also of building any additional party structures that may be required by reason of the partition having been pulled down, shall be borne by the building owner and adjoining owner in due proportion, regard being had to the use that each owner may

make of the party structure and to the thickness required for the support of the respective buildings parted thereby.

- (5) If any rooms or storeys or any parts thereof, the property of different owners, and intermixed in any building, are pulled down in pursuance of the right by this Ordinance vested in a building owner, and are rebuilt in conformity with this Ordinance, the expense of such pulling down and rebuilding shall be borne by the building owner and adjoining owner in due proportion, regard being had to the use that each owner may make of such rooms or storeys.
- (6) If any arches or communications over public ways or over passages belonging to other persons than the owners of the buildings connected by such arches or communications, or any part thereof, are pulled down in pursuance of the right by this Ordinance vested in a building owner, and are rebuilt in conformity with this Ordinance, the expense of such pulling down and rebuilding shall be borne by the building owner and adjoining owner in due proportion, regard being had to the use that each owner makes of such arches or communications.

119. Expenses to be borne by the building owner

- (1) As to expenses to be borne by the building owner the following provisions shall apply.
- (2) If any party structure or any external wall built against another external wall is raised or underpinned in pursuance of the power by this Ordinance vested in a building owner, the expense of raising or underpinning the same and of making good all damage occasioned thereby, and of carrying up to the requisite height all such flues and chimney-stacks belonging to the adjoining owner on or against any such party structure or external wall as are by this Ordinance required to be made good and carried up, shall be borne by the building owner.

- (3) If any party structure, which is of proper materials and sound or not so far defective or out of repair as to make it necessary or desirable to pull it down, is pulled down and rebuilt by the building owner, the expense of pulling down and rebuilding the same and of making good any damage by this Ordinance required to be made good, and a fair allowance in respect of the disturbance and inconvenience caused to the adjoining owner shall be borne by the building owner.
- (4) If any party structure is cut into by the building owner, the expense of cutting into the same, and of making good any damage by this Ordinance required to be made good shall be borne by such building owner.
- (5) If any footing, chimney-breast, jamb or floor is cut away in pursuance of the powers by this Ordinance vested in a building owner, the expense of such cutting away and making good any damage by this Ordinance required to be made good shall be borne by the building owner.
- (6) If any party fence wall is raised for a building, the expense of such raising shall be borne by the building owner.
- (7) If any party fence wall is pulled down and built as a party wall the expense thereof shall be borne by the building owner.

120. Proportion of expenses which may be borne by adjoining owner

If at any time the adjoining owner makes use of any party structure or external wall (or any part thereof) raised or underpinned as aforesaid, or of any party fence wall pulled down and built as a party wall (or any part thereof) beyond the use thereof made by him before the alteration, there shall be borne by the adjoining owner from time to time a due proportion of the expenses (having regard to the use that the adjoining owner may make thereof)—

- (a) of raising or underpinning such party structure or external wall, and of making good all such damage occasioned thereby to the adjoining owner, and of carrying up to the requisite height all such flues and chimney-stacks belonging to the adjoining owner on or against any such party structure or external wall as are by this Ordinance required to be made good and carried up;
- (b) of pulling down and building such party fence wall as a party wall.

121. Statement of expenses to be submitted by building owner

Within 1 month after the completion of any work which a building owner is by this Ordinance authorized or required to execute, and the expense of which is in whole or in part to be borne by an adjoining owner, the building owner shall deliver to the adjoining owner an account in writing of the particulars and expense of the work, specifying any deduction to which such adjoining owner may be entitled in respect of old materials, or in other respects, and every such work shall be estimated and valued at fair average rates and prices according to the nature of the work, and the locality and the market price of materials and labour at the time.

122. Difference between building owner and adjoining owner as to expenses

At any time within 1 month after the delivery of the said account the adjoining owner, if dissatisfied therewith, may declare his dissatisfaction to the building owner by notice in writing served by himself or his agent, and specifying his objections thereto, and thereupon a difference shall be deemed to have arisen between the parties, and shall be determined in manner hereinbefore provided for the settlement of differences between building and adjoining owners.

123. Failure by adjoining owner to express dissatisfaction to be deemed acceptance

If within the said period of 1 month the adjoining owner does not declare in the said manner his dissatisfaction with the account, he shall be deemed to have accepted the same, and shall pay the same on demand to the party delivering the account, and, if he fails to do so, the amount so due may be recovered as a debt.

124. Adjoining owner failing to contribute, building owner to become sole owner

Where the adjoining owner is liable to contribute to the expenses of building any party structure, then, until such contribution is paid, the building owner at whose expense the same was built shall stand possessed of the sole property in the structure.

125. Adjoining owner liable for expenses incurred on his requisition

The adjoining owner shall be liable for all expenses incurred on his requisition by the building owner, and in default of payment the same may be recovered from him as a debt.

126. Other easements and rights in regard to party structures preserved

Nothing in this Ordinance shall authorize any interference with any other easements in or relating to a party wall, or take away, abridge, or prejudicially affect any right of any person to preserve or restore any other thing in or connected with a party wall in case of the party wall being pulled down or rebuilt.